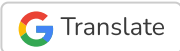


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 People v. Vaultz California Court of Appeals, Second District, Sixth Division Apr 12, 2024	Subsequent References	CaselQ (AI Recommendations)
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Smart Summary

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**THE PEOPLE, PLAINTIFF AND RESPONDENT, V. HORACE VAN VAULTZ, JR.,
DEFENDANT AND APPELLANT.**

GILBERT, P. J.

NOT TO BE PUBLISHED

Rob Bonta, Attorney General, Lance E. Winters, Chief Assistant Attorney General, Susan Sullivan Pithey, Assistant Attorney General, Scott A. Taryle and David A. Voet, Deputy Attorneys General, for Plaintiff and Respondent.

A jury convicted Horace Van Vaultz, Jr. of murdering Selena Keough § 187, subd. (a)) with the special circumstance that the murder was committed while the defendant was engaged in rape and sodomy. (, (D).) The jury also convicted Vaultz of murdering Mary Duggan with special circumstance that the murder was committed while the defendant Vaultz was engaged in rape. (.) The trial court sentenced Vaultz to consecutive life terms without parole. We affirm.

Murder of Selena Keough

In July 1981 at approximately 2:00 a.m., Kenneth Byrne was driving home from work when he noticed a man and a woman talking. The man was approximately six foot three inches tall, very well built and either light skinned or Mexican. The man's car appeared to be a shiny gold colored Cadillac.

Later that same day Keough's body was discovered near the location where Byrne had seen the man and woman talking. Keough had bruises on her face and ligature marks around her neck. She was wearing only a shirt. Her legs were spread apart, and her underwear was around her left ankle.

The coroner performed an autopsy and a sexual assault examination. A forensic pathologist concluded Keough's death was caused by strangulation with a ligature such as a rope or purse strap during a sexual assault. Sperm was found in Keough's vagina and anus, mainly the anus, and there were tears in her vagina and anus.

In 2020, a DNA analysis was made of the sperm taken from Keough's body. The DNA matched Vaultz's DNA.

Murder of Mary Duggan

The DNA testing of the sperm matched with the DNA of the sperm found in Keough's body. The same DNA was found on the gag in Duggan's mouth. Eventually the DNA found in both women was matched with Vaultz's DNA.

In December of 1986, Ventura police found the naked body of Janna Rowe under plywood scraps. Her ankles were bound with ligatures made of white cloth. Semen was found in Rowe's vagina, anus, and mouth. Her neck was bruised and damaged. The medical examiner determined that she died by strangulation.

Rowe owned a yellow Datsun vehicle. The police found the Datsun about a mile from the Conejo Inn motel in Thousand Oaks. The motel manager said he rented a room to Vaultz on December 24, 1986. The manager saw a yellow Datsun was parked improperly. Vaultz told the manager that the car belonged to a friend, and that he would move it. The manager saw Vaultz move the car. The manager never saw anyone else with the car.

The police went to the home of Vaultz's mother. Vaultz was present. The police obtained a warrant to search the home. They discovered a unique pendant that Rowe's father had made for her in a jewelry box underneath some clothing. It had Rowe's name on the back.

In 2019, DNA evidence showed that the DNA found in the sperm from Rowe's body matched Vaultz's DNA.

Attempted Murder of Wendi Wall

In February 1984, Wendi Wall and her friend went to a bar in Garden Grove. A man who identified himself as Randdi Stone walked up and spoke to Wall's friend. Wall later identified Stone as Vaultz.

Wall and her friend left the bar and drove to her friend's apartment. Vaultz was there waiting in the living room. Wall's friend said she was tired and was going to bed. Wall and Vaultz left the apartment. Wall's car was parked next to Vaultz's Cadillac.

As Wall was getting into her car, Vaultz pushed her over, put one leg into the car and tried to kiss her. Wall was very frightened and told Vaultz no. Vaultz pushed her on her back. She resisted and told him to stop, but he would not relent. Vaultz threatened to kill her if she screamed. He said, "I have killed before and I will kill again. I was in the Marines." He pulled the strap off her purse and began to choke her with it.

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there was more room in his car. Wall told him that she had to use the bathroom. He led her to some bushes. When Vaultz let go of Wall's arm, she fled to her friend's apartment. Her friend let her in. Her friend asked Wall not to notify the police.

PKMKB

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